

day, December 20, 1974, appellant filed this action in the District Court for the District of Columbia, which under § 105 (a) of the Act has exclusive jurisdiction to entertain complaints challenging the Act's legal or constitutional validity, or that of any regulation promulgated by the Administrator. Appellant's complaint challenged the Act's constitutionality on a number of grounds and sought declaratory and injunctive relief against its enforcement. A three-judge District Court was convened pursuant to 28 U. S. C. §§ 2282, 2284.¹ Because regulations required by § 104 of the Act governing public access to the materials were not yet effective, the District Court held that questions going to the possibility of future public release under regulations yet to be published were not ripe for review. It found that there was "no need and no justification for this court now to reach constitutional claims directed at the regulations . . . the promulgation of [which] might eliminate, limit, or cast [the constitutional claims] in a different light." 408 F. Supp. 321, 336 (1976). Accordingly, the District Court limited review "to consideration of the propriety of injunctive relief against the alleged facial unconstitutionality of the statute," *id.*, at 335, and held that the challenges to the facial constitutionality of the Act were without merit. It therefore dismissed the complaint. *Id.*, at 374-375. We noted probable jurisdiction, 429 U. S. 976 (1976). We affirm.

I

The Background

The materials at issue consist of some 42 million pages of documents and some 880 tape recordings of conversations. Upon his resignation, appellant directed Government archivists to pack and ship the materials to him in California. This

¹ For proceedings prior to convention of the three-judge court, see *Nixon v. Richey*, 168 U. S. App. D. C. 169, 513 F. 2d 427, on reconsideration, 168 U. S. App. D. C. 172, 513 F. 2d 430 (1975). See also *Nixon v. Sampson*, 389 F. Supp. 107 (DC 1975).